

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Rodriguez	Team: Team # 3	CCRB Case #: 200604861	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 04/12/2006 3:03 PM	Location of Incident: § 87(2)(b)		18 Mo. SOL 10/12/2007		Precinct: 44
Date/Time CV Reported Thu, 04/13/2006 3:03 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/17/2006 11:26 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Rolando Carbonell	02708	928017	NARCBBX
2. SGT John Urena	03550	907485	NARCBBX
3. DT3 Felix Lopez	92265	922665	NARCBBX
4. DT3 Lisandro Rivera	05877	895038	NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 John Lindsey	92050	920507	NARCBBX
2. SGT Michael Cronin	00348	897264	044 PCT
3. DT3 Joseph Human	03996	925486	NARCBBX
4. DT3 Anthony Munroe	03727	900055	NARCBBX
§ 87(2)(e), § 87(2)(f)			
6. SGT Douglas Cooper	02623	901360	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Lisandro Rivera	Abuse: Det. Lisandro Rivera facilitated the stop and questioning of § 87(2)(b)	A . Exonerated
B . POM Rolando Carbonell	Abuse: PO Rolando Carbonell forcibly stopped and questioned § 87(2)(b)	B . Unsubstantiated
C . DT3 Felix Lopez	Abuse: Det. Felix Lopez searched § 87(2)(b)	C . Alleged Victim Unavailable
D . SGT John Urena	Discourtesy: Sgt. John Urena spoke rudely to § 87(2)(b)	D . Unsubstantiated

Synopsis

On April 12, 2006 § 87(2)(b) called 911 and was subsequently transferred to the Internal Affairs Bureau (IAB). On April 17, 2006, IAB referred this case to the CCRB under IAB log # 06-12073. § 87(2)(b) was not present during this incident but reported that the “fucking police abused his girlfriend.” As § 87(2)(b) was “belligerent and screaming very loudly” during the call, no further information could be obtained. At some point thereafter, § 87(2)(b) girlfriend, § 87(2)(b) was connected with IAB and reported that an unknown Black male punched her and threw her to the ground. § 87(2)(b) also ultimately alleged that a male, subsequently identified during the investigation as § 87(2)(b) witnessed this incident and was stopped and searched (allegations A, B and C). § 87(2)(b) also alleged that an officer seated in an unmarked van, identified via investigation as Sgt. John Urena, cursed at her (Allegation D).

§ 87(2)(b) could not be located during the investigation. § 87(2)(g) Therefore it is recommended that **allegation A be closed as exonerated and that allegation D be closed as victim unavailable.** § 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **allegations B, and C be closed as unsubstantiated.**

§ 87(2)(g)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b), § 87(2)(b)-old Hispanic female. § 87(2)(b) provided multiple statements relating to this incident. On April 12, 2006, she provided a phone statement to IAB and was later interviewed by the assigned 44th Precinct Patrol Supervisor, Sgt. Michael Cronin. That same day she was treated at § 87(2)(b) where she claimed that a plainclothes officer hit her from behind and pushed her to the ground (enc. 7A). On April 14, 2006, § 87(2)(b) made additional statements to hospital personnel at § 87(2)(b) where she stated that officers assaulted her and complained of right shoulder pain and right thigh pain (encs. 7 B-C). § 87(2)(b) On May 4, 2006, § 87(2)(b) was formally interviewed at the CCRB. On June 6, 2006, § 87(2)(b) filed a Notice of Claim. On § 87(2)(b), § 87(2)(b) provided testimony during a 50-H hearing (encs. 11 A-QQ). § 87(2)(g)

On April 12, 2006 at approximately 3:00 PM, § 87(2)(b) left her apartment located at § 87(2)(b) in the Bronx to go to the check cashing store and the pharmacy. As she walked north on § 87(2)(b) she noticed a Hispanic male riding a bicycle, identified during the investigation as § 87(2)(b). § 87(2)(b) had never seen the male prior to this day and did not speak to him. At the intersection of § 87(2)(b), an officer (PO 1), described as a plain clothed, 5’10” muscular Black male wearing an olive green checkered shirt jacket, struck her from behind, threw her to the ground, and hit her on the right side of her body. PO 1 was subsequently identified during the investigation as PO Rolando Carbonell of Narcotics Borough Bronx. In her phone statement to IAB, § 87(2)(b) stated that a Black male punched her, threw her to the ground, and pushed her against a car. The officers did not allow her to leave and attempted to handcuff her, but she would not allow them to do so. In her statement to Sgt. Cronin, she added that PO Carbonell had a shield around his neck that read 2708. PO Carbonell lifted § 87(2)(b) who was screaming loudly in fear, from the ground and told her to be quiet.

§ 87(2)(b) attempted to pull away from PO Carbonell, however he grabbed onto § 87(2)(b) right arm to prevent her from escaping. PO Carbonell then pushed § 87(2)(b) against a car that was parked on the sidewalk. As § 87(2)(b) was being held against the car she saw another officer (PO 2), described as a plain clothed 5’8” slightly heavier White male, identified during the investigation as Detective Felix Lopez of Narcotics Borough Bronx. Det. Lopez had stopped § 87(2)(b) and was searching him. § 87(2)(b) could not see how § 87(2)(b) was searched, but she knew that § 87(2)(b) s

pockets were entered. § 87(2)(b) did not make this allegation to IAB, hospital personnel or in her Notice of Claim. § 87(2)(b) continued to scream at which time she asked PO Carbonell if she could call her sister-in-law or her boyfriend. To each request, PO Carbonell responded, “the one with the drugs?” and refused to allow § 87(2)(b) to make a call. Regardless, when § 87(2)(b) sister-in-law called her during the incident, § 87(2)(b) answered the call and told her sister-in-law that she was apprehended, but did not know whether she was being arrested or kidnapped. PO Carbonell then showed § 87(2)(b) his badge. § 87(2)(b) continued to shout at PO Carbonell to let her go. PO Carbonell and Det. Lopez attempted to handcuff § 87(2)(b) but she pulled away from them. After § 87(2)(b) pulled away from the officers a second time, they let her go. In her 50-H testimony, § 87(2)(a) Gen.Mun. §50-H(3)

PO 3 was identified during the investigation as Sgt. John Urena of Narcotics Borough Bronx. § 87(2)(a) Gen.Mun. §50-H(3)

§ 87(2)(b) ultimately stated in her CCRB interview that PO Carbonell told her numerous times to, “Shut the fuck up.” However, in her statement to Sgt. Cronin, § 87(2)(b) stated that the two or three male officers in the green minivan cursed at her. She did not however, specify what these officers said and she never alleged that PO Carbonell cursed at her. Although it claims that she was “verbally humiliated,” there are no specific references to any discourtesies in § 87(2)(b) Notice of Claim. In her 50-h hearing, § 87(2)(a) Gen.Mun. §50-H(3), § 87(2)(g) § 87(2)(b) alleged that upon her “release from the precinct”, an officer stated to her, “fucking ass, you fucking bitch slut.”

During her interview with Sgt. Cronin, § 87(2)(b) fainted resulting in her treatment at § 87(2)(b). As a result of the force used against her, § 87(2)(b) sustained a large bruise to her right shoulder, right thigh, her calf, unspecified left or right, and her left wrist. After experiencing continued pain, § 87(2)(b) sought additional treatment at § 87(2)(b) on § 87(2)(b). On June 28, 2006, § 87(2)(b) attorney § 87(2)(b) provided black and white copies of nine photos depicting § 87(2)(b) injuries (encs. 12 A-D). In these photos, a large bruise is visible on § 87(2)(b) right shoulder. § 87(2)(b) was neither arrested nor summonsed during this incident.

Results of Investigation

§ 87(2)(b)

§ 87(2)(e), § 87(2)(f)

Consequently, on March 20, 2007 the CCRB contacted § 87(2)(b) via telephone. § 87(2)(b) confirmed that he was transported to a location where he saw two officers arguing with a female. Although he could not hear the details of the argument, he confirmed that the female apparently did not want to be searched. § 87(2)(b) was the only prisoner in the van at this time. § 87(2)(b) did not know whether anyone else was stopped along with the female, but acknowledged that there were approximately five people gathered around the officers and the female. § 87(2)(b) estimated that he was at the location for approximately fifteen to twenty minutes and that in that time he never saw any officers have physical contact with the female nor did he see the female on the ground at any point. At one point § 87(2)(b) saw officers throw their hands up in the air in disbelief because they “could not get through to the female.”

Civilians Not Interviewed

On July 5, 2006, § 87(2)(b) attorney, § 87(2)(b) identified the additional victim in this case as § 87(2)(b) and provided partial contact information including the street on which § 87(2)(b) resides, § 87(2)(b) in the Bronx and his home number § 87(2)(b). On August 14, 15 and 16, 2006, the investigator called the aforementioned number; however each time there was no answer and no voicemail was available. Searches in Metrosearch and DMV databases yielded negative results. A search of Lexis Nexis on January 31, 2007 yielded twenty-six possible addresses; however, none of these matched the partial address that Attorney § 87(2)(b) provided. The only address that matched the zip code Attorney

§ 87(2)(b) provided was for a § 87(2)(b) that was born in § 87(2)(b). § 87(2)(b), § 87(2)(g)

Investigator Greenstein mailed a contact letter to this address on August 14, 2006, however it was returned to the CCRB on August 22, 2006 marked “unable to be forwarded” to a new address. Investigator Greenstein contacted Attorney § 87(2)(b) office four times between August 24, 2006 and November 29, 2006, however he was unable to provide further contact information for § 87(2)(b) § 87(2)(b), § 87(2)(g)

The initial complainant, § 87(2)(b) called 911 on April 12, 2006 and stated that § 87(2)(b) was pushed to the ground by a police officer. § 87(2)(b) was subsequently connected to PO Tiffany Jeffries of IAB. § 87(2)(b) was screaming while on the phone with PO Jeffries and demanded that officers respond to his apartment to interview § 87(2)(b). § 87(2)(b) cursed at PO Jeffries throughout the phone conversation and told her, “This shit has gotta stop... with the fucking abuse of the police” (enc. 13A). The investigation confirmed that § 87(2)(b) did not witness any portion of this incident. § 87(2)(g)

Identification of Subject Officers

PO Rolando Carbonell was identified via the IAB Synopsis Log. Sgt. John Urena, Det. John Lindsey, Det. Felix Lopez, Det. Joseph Human, Det. Anthony Munroe, Det. Lisandro Rivera, and § 87(2)(e) were subsequently identified § 87(2)(e) § 87(2)(f), § 87(2)(g) These officers subsequently admitted their respective roles during this incident.

Detective Lisandro Rivera

§ 87(2)(e), § 87(2)(f)

Det. Rivera did not have any entries in his memo book related to this incident. Det. Rivera was interviewed at the CCRB on October 3, 2006.

§ 87(2)(e), § 87(2)(f)

Det. Rivera observed a Hispanic male riding a bicycle, identified as § 87(2)(b) in front of the building. § 87(2)(b) was escorting people inside the building to another male who was sitting in the lobby of the building. Det. Rivera opined that § 87(2)(b) was acting as a middleman between drug buyers and the man in the lobby. § 87(2)(e), § 87(2)(f)

Det. Rivera did not see § 87(2)(b) after this point and did not see him speaking to a Hispanic female at any point. § 87(2)(e), § 87(2)(f)

PO Rolando Carbonell

§ 87(2)(e), § 87(2)(f)

Both officers were dressed in plainclothes and were assigned to an unmarked silver 4-door sedan. PO Carbonell is a § 87(2)(b) Black male and has brown eyes. PO Carbonell did not have any related entries in his memo book regarding this incident; however, he documented the stop of § 87(2)(b) in a stop and frisk report (encl.). The report noted that PO Carbonell stopped § 87(2)(b) on the corner of West 164th Street and Woodycrest Avenue because she had made actions indicative of engaging in a drug transaction. PO Carbonell identified himself via his badge, however § 87(2)(b) refused to provide her identification. The interaction lasted approximately three minutes, and § 87(2)(b) was not frisked or searched. PO Carbonell was interviewed at the CCRB on September 7, 2006 (encl.).

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

he observed a Hispanic male who had a bicycle, identified as § 87(2)(b) and a Hispanic female, identified as § 87(2)(b) walking together. PO Carbonell stated that it was apparent that they knew each other. PO Carbonell approached § 87(2)(b) and Det. Lopez spoke to § 87(2)(b). PO Carbonell told § 87(2)(b) “Ma’am, I’m a police officer and I want to ask you a couple of questions.” § 87(2)(b) then turned onto § 87(2)(b).

When PO Carbonell followed § 87(2)(b) she “went ballistic” and began to scream, “No, no, no, no, no...” The female then answered her cell phone and told the person on the other end in Spanish that the police was beating her up. PO Carbonell did not want to cause a scene because there were children in the vicinity and so he did not actively try to stop § 87(2)(b) and did not have any physical contact with her. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) continued to scream and stated that an officer had assaulted her. Sergeant Urena told her that he had watched the entire incident and that nothing had happened. The female retorted that she was going to call 911 and walked away from the officers. PO Carbonell then got into his car and left the scene.

Detective Felix Lopez

§ 87(2)(e), § 87(2)(f)

Det. Lopez is a § 87(2)(b) Hispanic male, and has brown hair and brown eyes. Both officers were dressed in plainclothes and assigned to an unmarked four-door sedan.

Det. Lopez had entries in his memo book which noted that at 2:35 PM he stopped a male Hispanic wearing a blue jacket, blue jeans a red baseball cap and glasses. The male was stopped for “CSCS” [criminal sale of a controlled substance] and CPW [criminal possession of a weapon] at the corner of § 87(2)(b). At 2:37 PM, Det. Lopez noted a 10-98, [resuming patrol] after a female walking to “c/o” screaming and acting crazy (encs. 21 A-B). Det. Lopez also prepared a stop and frisk report for a Hispanic male who refused to provide his name and contact information.

§ 87(2)(e), § 87(2)(f)

Detective Lopez was interviewed at the CCRB on December 27, 2006 (encs. 21 A-B).

§ 87(2)(e), § 87(2)(g)

§ 87(2)(e), § 87(2)(f)

A female, identified as § 87(2)(b) was behind Det. Lopez and suddenly began to scream in Spanish and act crazy. Det. Lopez could not recall what she was saying. The officers identified themselves as police officers and told § 87(2)(b) to calm down. Neither Det. Lopez nor PO Carbonell had physical contact with § 87(2)(b) nor did they curse at her. Det. Lopez did not observe any prior interaction between § 87(2)(b) and § 87(2)(b).

Sergeant John Urena

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Urena is a Hispanic male, § 87(2)(b), has brown hair and brown eyes and was dressed in plainclothes. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Urena was interviewed at the CCRB on September 11, 2006.

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) When he and Det. Lindsey arrived, he observed § 87(2)(b) and § 87(2)(b) walking together at which point, Det. Lopez and PO Carbonell approached § 87(2)(b) and § 87(2)(b). Sgt. Urena was parked approximately 40 feet away from where § 87(2)(b) and § 87(2)(b) were stopped. Det. Lopez spoke with § 87(2)(b) and PO Carbonell attempted to speak to § 87(2)(b) but she began to walk faster. When PO Carbonell asked her to stop, § 87(2)(b) began to scream and flail her arms. § 87(2)(b) was extremely upset and acted in an abnormal and irrational manner, she cursed and screamed that she did not sell drugs. Sgt. Urena denied that Det. Lopez or PO Carbonell had any physical contact with § 87(2)(b). PO Carbonell looked towards Sgt. Urena who confirmed that there were many children and parents in the area and because it was a drug prone area, he motioned for PO Carbonell to “wrap it up.” Sgt. Urena was unsure whether § 87(2)(b) was ever searched.

§ 87(2)(b) then turned and walked towards Sgt. Urena’s vehicle. Sergeant Urena opened the van door and told § 87(2)(b) in Spanish to calm down and asked her what was wrong. § 87(2)(b) then called him a “son of a bitch” in Spanish and said that she was going to call the police. Sgt. Urena told her that he was the police and she looked at his shield. § 87(2)(b) told Sgt. Urena that she was slammed against a car, but Sgt. Urena responded that he witnessed the entire incident and that no one touched her. § 87(2)(b) then walked away. Sgt. Urena denied cursing at § 87(2)(b) and claimed that she did not have any injuries.

Det. John Lindsey

On April 12, 2006, Det. Lindsey worked from 9:30 AM to 6:05 PM as the arresting officer for the Bronx Narcotics Team. Detective Lindsey is a black male, § 87(2)(b) and has black hair and brown eyes. He was interviewed at the CCRB on September 7, 2006 (encs. 22 A-B).

§ 87(2)(g) However, he indicated that when PO Carbonell attempted to stop § 87(2)(b) she yelled “I don’t sell drugs, I’m not a drug dealer, I’m not doing anything.” He also stated that § 87(2)(b) was cursing, but he could not recall what she said. Det. Lindsey classified § 87(2)(b) as an emotionally disturbed person and claimed she was belligerent. However, she was never “physically violent.” Det. Lindsey also added that when § 87(2)(b) approached their unmarked van, she alleged that the officers had just “beaten me up.” Det. Lindsey denied that he or Sgt. Urena cursed at § 87(2)(b) at any point.

Det. Anthony Munroe and Det. Joseph Human

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) Det. Munroe and Det. Human were dressed in plainclothes during the incident and were interviewed at the CCRB on October 19, 2006 and October 26, 2005 respectively (encs. 25 A-B & 27 A-B). Det. Munroe is a black male, § 87(2)(b) and has black hair and brown eyes. Det. Human is a white male, § 87(2)(b), and has brown hair and hazel eyes. Det. Human did not have any memo book entries related to this incident. Det. Munroe did not have his memo book with him at the time of his CCRB interview. § 87(2)(g)

Det. Munroe

§ 87(2)(e), § 87(2)(f)

Det. Monroe stated that once he and Det. Human responded to the location of the stop, he observed a crowd of approximately 20 to 30 civilians and additional members of the field team standing approximately 20 to 25 feet from his van. Det. Munroe heard a female screaming for help but he could not see her. Det. Munroe stayed in the van with a prisoner from a prior unrelated arrest while Det. Human approached the crowd. Det. Could not see any of the officers interacting with any of the civilians and could not see what was going on in the crowd. When Det. Human returned five to minutes later, they left the location.

Det. Human

§ 87(2)(e)

Once he and Det. Munroe arrived at the location, he observed that PO Carbonell and Det. Lopez had stopped a male and a female. Det. Human exited the van and approached the officers. Either PO Carbonell or Det. Lopez told Det. Human that they were not needed. Although he believed that Sgt. Urena was parked at the end of the block, he did not see Sgt. Urena at the location of the stop. Det. Human stated that the officers were merely talking with the male and the female and that neither civilian appeared annoyed that they had been stopped. The female never complained of injuries and she did not have any visible injuries. Det. Human was on scene for approximately two minutes before he returned to the van and he Det. Munroe left the location.

Sgt. Michael Cronin and Sgt. Douglas Cooper

§ 87(2)(e), Sgt. Cronin and Sgt. Cooper were interviewed at the CCRB on § 87(2)(e), § 87(2)(f) October 12, 2006 and October 18, 2006 respectively. § 87(2)(e), § 87(2)(f)

The IAB synopsis log identified Sgt. Cronin and “Sgt. Cooper” as the supervisors that interviewed § 87(2)(b) at her home and at § 87(2)(b) respectively. Sgt. Cronin corroborated the information listed in the IAB log and was of the opinion that § 87(2)(b) was faking when she passed out in his presence because she “miraculously” awoke two minutes later. Sgt. Cooper confirmed that he did not respond to § 87(2)(b) and never interviewed § 87(2)(b)

Medical Records

§ 87(2)(a) PBH §18(6)

Notice of Claim

On § 87(2)(b), § 87(2)(b) filed a Notice of Claim against the City of New York. The claim does not request a specific dollar amount but instead asks for “adjustment and payment” of injuries and medical expenses incurred as a result of this incident. The Notice of Claim does not list the extent of her injuries noting only that the full extent of her injuries were unknown at the time the claim was filed (encs. 10 A-B). On May 10, 2007, Bruce Gomez of Comptroller’s Office confirmed that the claim is still pending as § 87(2)(b) has yet to take the next step in the claim process which is to file the Summons of Complaint.

NYPD Documents

Roll Call

§ 87(2)(e), § 87(2)(f)

The 44th Precinct roll call documents that Sgt. Cronin worked from 6:55 AM to 3:52 PM and was the patrol supervisor (enc. 35).

Tactical Plan

§ 87(2)(e), § 87(2)(f)

Criminal Conviction and CCRB History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(g)

This is

§ 87(2)(b) only CCRB complaint (enc. 4A).

Officers' CCRB History

In CCRB case number 200403560, PO Carbonell was substantiated for an allegation of discourtesy for which he received instructions. Sgt. Urena, Det. Rivera and Det. Lopez do not have a history of substantiated allegations with the CCRB (encs. 3 A-D).

Conclusions and Recommendations

Identification of Subject Officers

PO Carbonell corroborated that he stopped § 87(2)(b) § 87(2)(g) § 87(2)(b) stated that PO Carbonell's partner, searched § 87(2)(b) PO Carbonell confirmed that he was partnered with Det. Lopez. Although he denied searching § 87(2)(b) Det. Lopez admitted that he stopped and frisked § 87(2)(b) § 87(2)(g) referred to the officer that cursed at her from within the unmarked van as a supervisor. She described him as a white male, who had a heavy build, dark hair and was dressed in plainclothes. Sgt. Urena is a Hispanic male, § 87(2)(b) and has brown hair and brown eyes. Sgt. Urena admitted that he spoke with § 87(2)(b) after she walked away from the officers that stopped her and he confirmed that he opened the van door to speak with her. § 87(2)(g)

Disputed and Undisputed Facts

§ 87(2)(g)

It is undisputed that PO Carbonell and Det. Felix stopped § 87(2)(b) and § 87(2)(b) respectively and that at minimum, Det. Felix frisked § 87(2)(b) § 87(2)(g) It is undisputed that § 87(2)(b) spoke to Sergeant Urena after she was stopped; § 87(2)(g)

Civilian Credibility

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) provided photos to the CCRB that document a large bruise on her right shoulder and her medical documents confirm that she suffered a contusion to her right shoulder. § 87(2)(g)

§ 87(2)(b) allegedly fainted while Sgt. Cronin interviewed her regarding this incident, only to rather quickly awake from her state of unconsciousness. No where in her medical records does she claim to have lost consciousness and the records specifically note that she never lost consciousness as a result of this incident. § 87(2)(b) also filed a Notice of Claim against the City of New York.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

Officer Credibility

§ 87(2)(g), § 87(2)(e), § 87(2)(f)

§ 87(2)(g) PO Carbonell stated that § 87(2)(b) and § 87(2)(b) were walking together and talking to each other. He further stated that he approached § 87(2)(b) and that Det. Lopez approached § 87(2)(b). However, Det. Lopez stated that § 87(2)(b) was walking alone when they approached him and that it was not until after § 87(2)(b) had been frisked that § 87(2)(b) appeared on the scene. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Det. Human stated that upon their arrival, Det. Munroe remained in the van with the prisoner while he approached PO Carbonell and Det. Lopez. Det. Human further stated that § 87(2)(b) did not seem disturbed that she had been stopped, and that he left the scene after PO Carbonell and Det. Lopez told him that he was not needed. However, Det. Munroe stated he observed a large crowd consisting of approximately 30 civilians, PO Carbonell, Sgt. Urena and Det. Lindsey. Det. Munroe could hear a female screaming for help, but could not see her due to the large crowd. § 87(2)(g)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(g)

Sgt. Michael Cronin & Sgt. Douglas Cooper

Neither Sgt. Cronin nor Sgt. Cooper witnessed this incident; therefore their credibility will not be assessed.

Allegations not pleaded

§ 87(2)(g)

Allegation A: Det. Lisandro Rivera facilitated the stop and questioning of § 87(2)(b)

§ 87(2)(g)

According to Kamins New York Search and Seizure, an officer may forcibly stop an individual “when he reasonably suspects that such person is committing, has committed, or is about to commit either (a) a felony or (b) a misdemeanor” (enc. 2A). A forcible stop occurs when an officer physically subdues an individual or takes action that a reasonable person would believe is a “significant limitation on his freedom” (enc.2D). § 87(2)(b) alleged that an officer used physical force to throw her to the ground and she alleged that an officer searched § 87(2)(b) § 87(2)(g)

§ 87(2)(e), § 87(2)(g)

§ 87(2)(e), § 87(2)(g)

Therefore it is recommended that **allegation A be closed as exonerated.**

Allegation B: PO Rolando Carbonell forcibly stopped and questioned § 87(2)(b)

§ 87(2)(g)

Det. Lopez stated that § 87(2)(b) appeared after § 87(2)(b) was stopped and that she immediately started to scream and act irrationally prompting the officers' interaction with her. § 87(2)(b) alleged that PO Carbonell grabbed her from behind and threw her to the ground. § 87(2)(g)

§ 87(2)(b) stated that in his approximately fifteen minutes at the scene, he never saw any officer have physical contact with § 87(2)(b). § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **allegation B be closed as unsubstantiated.**

Allegation C: Det. Felix Lopez searched § 87(2)(b)

§ 87(2)(b) alleged that she witnessed Det. Lopez search § 87(2)(b). Det. Lopez, Sgt. Urena, and Det. Lindsey confirmed that Det. Lopez stopped and frisked § 87(2)(b). § 87(2)(e) However, they each denied that § 87(2)(b) was searched. The Stop & Frisk Report prepared by Det. Lopez confirms that § 87(2)(b) was stopped and frisked, but never searched. The CCRB was unable to locate § 87(2)(b) to confirm the circumstances of the stop, his actions prior to the stop and whether he was ever searched. § 87(2)(g)

Therefore, it is recommended that **allegation C be closed as victim unavailable.**

Allegation D: Sergeant John Urena spoke rudely to § 87(2)(b)

§ 87(2)(b) alleges that Sgt. Urena cursed at her when she went to complain about PO Carbonell's actions. None of the officers admit that Sgt. Urena ever cursed at § 87(2)(b). In her statement § 87(2)(b) merely alleged that Sgt. Urena called her a liar. § 87(2)(g)

Therefore, it is recommended that **allegation D be closed as unsubstantiated.**

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: